

IN THE CIRCUIT COURT OF THE
SEVENTH JUDICIAL CIRCUIT, IN
AND FOR SAINT JOHNS COUNTY, FLORIDA

CASE NO.: CA23-0432
DIVISION: 55

MARIANNE PONCET

Plaintiff,

vs.

SAMPSON GARGANO, an individual
and STATE FARM MUTUAL AUTOMOBILE
INSURANCE COMPANY, a Foreign Profit
Corporation, d/b in the State of Florida,

Defendants.

AMENDED COMPLAINT

Plaintiff, MARIANNE PONCET, by and through her undersigned counsel, sues the Defendant, STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY, a Foreign Profit Corporation d/b in the State of Florida and alleges:

1. This is an action for damages in excess of the sum of FIFTY THOUSAND DOLLARS (\$50,000.00), exclusive of interest and costs.

2. At all times material hereto, Plaintiff, MARIANNE PONCET, was and is a resident of St. Johns County, Florida.

3. At all times material hereto, the Defendant, STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY, a foreign profit corporation (hereinafter referred to as "STATE FARM") was and is a corporation in the business of providing and selling insurance, including uninsured/underinsured motorist insurance in the State of Florida, including Saint Johns County, Florida. The Registered Agent for the service of process in

the State of Florida is the Chief Financial Officer, 200 E. Gaines Street, Tallahassee, FL 32399.

4.. Prior to November 16, 2021, the Plaintiff, MARIANNE PONCET, purchased uninsured/underinsured motorist coverage from the Defendant, STATE FARM, which had benefits extended to the Plaintiff herein. At all times material hereto, said policy was and is in full force and effect. The purpose of such uninsured/underinsured motorist coverage insurance was to provide insurance coverage in the event that the insured and/or passengers of the insured were injured by a party or parties who did not have sufficient insurance to cover the damages suffered by the Plaintiff. This policy provides for uninsured/underinsured motorist coverage for the benefit of the Plaintiff in the amount of \$100,000.00 per individual and \$300,000.00 per incident. The Defendant is in possession of the actual contract/policy, however a copy of the Declarations Page is attached hereto as Exhibit "A.". The policy provides coverage to the Plaintiff, MARIANNE PONCET and the claim number is 59-27H8-9J.

5. On or about November 16, 2021, in Saint Johns County, Florida, Sampson Gargano owned and negligently operated a motor vehicle so that it collided with a motor vehicle owned and operated by Plaintiff MARIANNE PONCET.

7. At all times material hereto, Sampson Gargano was an underinsured motorist, covered by a policy of insurance by GEICO Advantage Insurance Company (GEICO) bodily injury liability limits of \$50,000.00, as evidenced by the Declaration Page of GEICO Advantage Insurance Company, copy of which is attached hereto as "Exhibit B."

8. Defendant, STATE FARM was notified by the Plaintiff, by and through his undersigned attorneys, that Sampson Gargano was an underinsured motorist, thereby creating an uninsured motorist claim against Defendant, STATE FARM.

9. On or about July 3, 2023, the Defendant, STATE FARM, agreed to waive its right of subrogation under the terms of the aforesaid policy of insurance with Plaintiff and granted Plaintiff permission to accept payment from GEICO for the bodily injury liability limits of \$50,000.00. A copy of this waiver and grant of permission is attached hereto as "Exhibit C."

10. Subsequently, Plaintiff accepted the GEICO policy limits and released Sampson Gargano from further liability for personal injury damages arising from the aforesaid accident.

11. The Plaintiff has fulfilled all conditions precedent to filing suit against the Defendant, STATE FARM.

12. As a result of the above-referenced automobile accident on November 16, 2021 and the negligence of Sampson Gargano in said accident, Plaintiff, MARIANNE PONCET, suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money and aggravation of a previously existing condition. The losses are either permanent or continuing and Plaintiff will suffer the losses in the future.

WHEREFORE, the Plaintiff, MARIANNE PONCET demands judgment against the Defendant, STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY, for damages and costs and demands trial by jury of all issues so triable by law.

WOOD, ATTER & WOLF, P.A.

By /s/ Michael A. Atter
MICHAEL ATTER, ESQUIRE
Florida Bar No.: 278726
Attorney for Plaintiff
100 N. Laura Street, Suite 702
Jacksonville, FL 32202
(904) 355-8888
Email: michaela@woodatter.com
Secondary Email: erikac@woodatter.com

DECLARATIONS PAGE

PAGE 1 OF 2

NAMED INSURED
 AT3 001717 0058 59-6465-1 C A
 PONCET, CATHERINE &
 PONCET, MARIANNE
 628 S TREE GARDEN DR
 ST AUGUSTINE FL 32086-5232

POLICY NUMBER 509 3002-B21-590
 POLICY PERIOD SEP 22 2020 to FEB 21 2021
 12:01 A.M. Standard Time

STATE FARM PAYMENT PLAN NUMBER
 0383175219

AGENT

PERRY D UNWALLA INS AGCY INC
 3791 A1A S STE A
 ST AUGUSTINE, FL 32080-9704



PHONE: (904)461-5400

DO NOT PAY PREMIUMS SHOWN ON THIS PAGE.
 IF AN AMOUNT IS DUE, THEN A SEPARATE STATEMENT IS ENCLOSED.

YOUR CAR

YEAR	MAKE	MODEL	BODY STYLE	VEHICLE ID. NUMBER	CLASS
2020	HONDA	ACCORD	4DR	1HGCV1F51LA119702	60005010002

SYMBOLS	COVERAGE & LIMITS	PREMIUMS
A	Liability Coverage	\$179.12
	Bodily Injury Limits	
	Each Person, Each Accident	
	\$100,000 \$300,000	
	Property Damage Limit	
	Each Accident	
	\$50,000	
P10	No-Fault Coverage	\$63.11
C	Medical Payments Coverage	\$23.62
	Emergency Medical Condition Limit -	
	Each Person	
	\$10,000	
	Not An Emergency Medical Condition Limit -	
	Each Person	
	\$1,250	
D	Comprehensive Coverage - \$500 Deductible	\$46.80
G	Collision Coverage - \$500 Deductible	\$116.41
H	Emergency Road Service Coverage	\$2.89
R1	Car Rental and Travel Expenses Coverage	\$9.64
	Limit - Car Rental Expense	
	Each Day, Each Loss	
	80% \$1,000	
U3	Uninsured Motor Vehicle Coverage (Non-Stacking)	\$95.63
	Bodily Injury Limits	
	Each Person, Each Accident	
	\$100,000 \$300,000	
S	Death, Dismemberment and Loss of Sight Coverage	\$1.92
	Persons Insured - \$5,000	
	PONCET, CATHERINE	
	& MARIAUNE	
Total premium for SEP 22 2020 to FEB 21 2021.		\$539.14 This is not a bill.

EXHIBIT "A"

CONTINUED

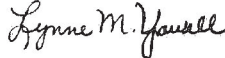
See Reverse Side

This policy is issued by State Farm Mutual Automobile Insurance Company.

MUTUAL CONDITIONS

1. **Membership.** While this policy is in force, the first insured shown on the Declarations Page is entitled to vote at all meetings of members and to receive dividends the Board of Directors in its discretion may declare in accordance with reasonable classifications and groupings of policyholders established by such Board.
2. **No Contingent Liability.** This policy is non-assessable.
3. **Annual Meeting.** The annual meeting of the members of the company shall be held at its home office at Bloomington, Illinois, on the second Monday of June at the hour of 10:00 A.M., unless the Board of Directors shall elect to change the time and place of such meeting, in which case, but not otherwise, due notice shall be mailed each member at the address disclosed in this policy at least 10 days prior thereto.

In Witness Whereof, the State Farm Mutual Automobile Insurance Company has caused this policy to be signed by its President and Secretary at Bloomington, Illinois.


Secretary


President

DECLARATIONS PAGE

PAGE 2 OF 2

NAMED INSURED 001717 0058
PONCET, CATHERINE &
PONCET, MARIANNE
628 S TREE GARDEN DR
ST AUGUSTINE FL 32086-5232

POLICY NUMBER 509 3002-B21-590
POLICY PERIOD SEP 22 2020 to FEB 21 2021
12:01 A.M. Standard Time
STATE FARM PAYMENT PLAN NUMBER
0383175219



ST-278
0202-2602

IMPORTANT MESSAGES

IMPORTANT NOTICE- Under No-Fault Coverage, the only medical expenses we will pay are reasonable medical expenses that are payable under the Florida Motor Vehicle No-Fault Law. The most we will pay for such reasonable medical expenses is 80% of the "schedule of maximum charges" found in the Florida Motor Vehicle No-Fault Law and in the Limits section of the Florida Car Policy's No-Fault Coverage.

Replaced policy number 5093002-59N.

New Policy Form

Your total renewal premium for AUG 21 2020 to FEB 21 2021 is \$651.12.

For questions, problems or to obtain information about coverage call: (904)461-5400.

State Farm works hard to offer you the best combination of price, service, and protection. The amount you pay for automobile insurance is determined by many factors such as the coverages you have, where you live, the kind of car you drive, how your car is used, who drives the car, and information from consumer reports.

You have the right to request, no more than once during your policy term, that your policy be re-rated using a current credit-based insurance score. Re-rating could result in a lower rate, no change in rate, or a higher rate.

EXCEPTIONS, POLICY BOOKLET & ENDORSEMENTS (See policy booklet & individual endorsements for coverage details.)

YOUR POLICY CONSISTS OF THIS DECLARATIONS PAGE, THE POLICY BOOKLET - FORM 9810A, AND ANY ENDORSEMENTS THAT APPLY, INCLUDING THOSE ISSUED TO YOU WITH ANY SUBSEQUENT RENEWAL NOTICE.
6097DV LEASED MOTOR VEHICLES (LESSOR AS ADDITIONAL INSURED AND LOSS PAYEE)-HONDA FINANCE EXCHANGE INC, PO BOX 49070, CHARLOTTE NC 28277-1007.
6128S.1 AMENDATORY ENDORSEMENT.

Agent: PERRY D UNWALLA INS AGCY INC

Telephone: (904)461-5400

Prepared OCT 08 2020 6465-C1C

02311/01365

155-3866.2 04-2005 (01a025hd)
155X0 (01a025vd)

(01a0254e)

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President